

WA.1 Owner-Builder Exemption Walkthrough

Which Washington exemptions you are actually relying on — there are three, with three different tests — what each one costs you if you get it wrong, and what takes it away.

Before you use this document

This is a process reference, not legal advice. Washington's building code is written by the State and enforced locally by 39 counties and hundreds of cities and towns, each with its own forms and fees — and your electrical permit may come from a different agency altogether. Confirm every item with the department that will issue your permit before you rely on it. Statute text was read at app.leg.wa.gov in August 2026; statutes change.

THE SHORT VERSION

Washington does not issue a general contractor license. It requires anyone who contracts to do construction work **for others** to **register** with the Department of Labor & Industries. Building on your own land, you are not contracting for anyone, and the statute says so explicitly. There is no project-cost threshold to clear, no affidavit sworn before a licensing board, and no requirement that you personally attend inspections. Compared with most states this is an easy door to walk through.

The mistake is stopping there. **Contractor registration is only one of three separate exemptions**, written in three separate chapters with three different tests. Qualifying for one does not qualify you for the others — and the electrical one is materially stricter than the plumbing one, which is the opposite of what most people assume.

The exemption at a glance

Question	Washington's answer
Do you need a license to be your own GC?	No. Washington has registration, not licensure, and working on your own property is exempt from it
Is there a dollar threshold?	Not for you. The \$500 figure in the chapter governs small jobs done <i>for others</i> , not the size of your house
Must you live in it?	Not for the registration exemption — it applies "whether occupied by him or her or not." Occupancy matters for the electrical exemption
What kills it?	Building for the purpose of selling, demolishing, or leasing the property
Do you still need permits?	Yes — every one of them. Exempt from a registration is not exempt from a permit

THE EXEMPTION ITSELF — RCW 18.27.090(12)

The registration provisions of chapter 18.27 RCW do not apply to:

RCW 18.27.090(12), in full

"Any person working on his or her own property, whether occupied by him or her or not, and any person working on his or her personal residence, whether owned by him or her or not but this exemption shall not apply to any person who performs the activities of a contractor on his or her own property for the purpose of selling, demolishing, or leasing the property."

Read it twice, because it is doing two jobs at once. The first clause covers **your own property** — and note the words *"whether occupied by him or her or not."* You do not have to live there. The second clause covers **your personal residence** *"whether owned by him or her or not"* — which is how a tenant may work on the home they live in. As an owner-builder you are almost always relying on the first clause.

Then the carve-out, and it is a **purpose** test, not a timing test. The exemption disappears if you are doing the work *"for the purpose of selling, demolishing, or leasing the property."* A spec house, a flip, or a rental you never intended to occupy is outside it from the first day, regardless of how long you hold it. Nothing in this subsection sets a number of months.

THE SECOND EXEMPTION YOU ARE ALSO USING — RCW 18.27.090(11)

The moment you hire someone, a different subsection carries you: *"An owner who contracts for a project with a **registered contractor**, except that this exemption shall not deprive the owner of the protections of this chapter against registered and unregistered contractors."* Two things follow from the wording.

- **It only names registered contractors.** Hiring registered trades keeps you plainly inside the exemption. Hiring an unregistered one puts you outside the four corners of the subsection and hands you the risk the statute is trying to protect you from.
- **It has its own, different carve-out** — and this is the twelve-month rule people half-remember: it *"does not apply to a person who performs the activities of a contractor for the purpose of leasing or selling improved property he or she has owned for **less than twelve months**."*

Two carve-outs, two different tests — do not merge them

Subsection **(12)** asks *what was your purpose*: selling, demolishing, or leasing. It sets no clock. Subsection **(11)** asks *how long have you owned it*: under twelve months, coupled with a purpose of leasing or selling.

Practical reading: build to live in it. If there is a real chance you will sell or lease inside a year of buying the land, get advice before you pull the permit rather than after — and note the consequence below is the permit itself, not a fine.

RCW 18.27.090(11) and (12). Two further subsections are worth knowing: **(13)** exempts an owner who performs maintenance, repair and alteration work on their own properties or uses their own employees to do it; **(9)** treats a whole undertaking whose aggregate contract price is under **\$500** as "casual, minor, or inconsequential" — but expressly not where the work is part of a larger operation, or where a job is split into sub-\$500 contracts to evade the chapter.

WHAT IT COSTS IF YOU CLAIM IT WRONGLY

Washington does not fine you for a bad exemption claim. It takes the permit: *"If a building permit is obtained by an applicant or contractor who falsifies information to obtain an exemption provided under RCW 18.27.090, the building permit shall be **forfeited**."* Forfeited, on a house you are part way through building, is the most expensive sentence in this kit.

The same statute gives you two things at the counter that most owner-builders never notice they are owed. At the time of issuing the permit, every city, town and county is responsible for **printing the contractor registration number on the building permit** and for *"providing a written notice to the building permit applicant informing them of contractor registration laws and the potential risk and monetary liability to the homeowner for using an unregistered contractor."* If nobody hands you that notice, ask for it.

RCW 18.27.110(2)(a), (2)(b), (3).

DOING YOUR OWN ELECTRICAL, PLUMBING, AND MECHANICAL WORK

Here the three chapters come apart. Each exemption below is from a **license or certification** requirement. None of them is an exemption from a **permit**.

Trade by trade — what each exemption actually says

Trade	The statutory test	Authority
Electrical	No license or certified electrician is needed <i>"to do electrical work at his or her residence or farm or place of business or on other property owned by him or her"</i> — unless the work is on the construction of a new building <i>intended for rent, sale, or lease</i> , or on property offered for sale within 12 months after obtaining it.	RCW 19.28.261(1)
Plumbing	<i>"Nothing in this chapter shall be construed to require that a person obtain a license in order to do plumbing work at his or her residence or farm or place of business or on other property owned by him or her."</i> Note what is absent : no rent, sale, or lease condition and no twelve-month clock. Medical gas systems are excluded.	RCW 18.106.150(1), (7)
Mechanical / HVAC	Washington does not run a separate statewide mechanical certification for this work; it is permitted and inspected under the mechanical code by your local building department. Handling refrigerant is a separate federal matter: EPA Section 608 certification is required to open a refrigerant circuit, and refrigerant may not be sold to uncertified persons.	40 C.F.R. Part 82, Subpart F

The "24 months" rule is real — but it is not the rule for your house

Guides routinely tell Washington owner-builders that to do their own electrical on a new home they must intend to occupy it as a principal residence for 24 months. That condition is in the statute, but read where it sits. RCW 19.28.261(1) gives the plain exemption for work on property you own. The 24-month language is in the sentence that *follows*, and it opens: "*However, if the construction is of a new residential building with up to four units **intended for rent, sale, or lease**, the owner may receive an exemption ... if he or she provides a signed affidavit to the department ...*"

So the affidavit, the 24-month occupancy intent, and the "*only receive an exemption once every twenty-four months*" limit are the terms of a **rescue route for buildings that are intended for rent, sale, or lease** — the classic case being an owner building a fourplex and living in one unit. A single-family house you are building to live in is not intended for rent, sale or lease, so it is covered by the plain exemption instead.

Confirm this with L&I before you buy wire. It is your money and your inspection, the distinction turns on a single sentence, and L&I is the agency that issues the permit and forms its own view of your intent.

RCW 19.28.261(1), including the second paragraph.

You are allowed help. Both chapters carry the same quiet provision: nothing in them restricts "*the right of any householder to assist or receive assistance from a friend, neighbor, relative, or other person when none of the individuals doing the ... installation hold themselves out as engaged in the trade or business.*" The limit is in the last clause — the moment someone is holding themselves out as being in the business, they need their own credentials.

RCW 19.28.261(6); RCW 18.106.150(6).

A permit is still required for every trade

Being exempt from a **license** is not being exempt from a **permit**. Your building, plumbing and mechanical permits come from your city or county. Your **electrical** permit and inspection come from L&I — or, if you are inside an incorporated city or town that runs its own electrical program, from that city. And no electrical work "*may be concealed until it has been approved by the inspector,*" nor may the utility connect you before L&I has approved. Doing trade work without pulling the permit is the most expensive mistake available to you, because the remedy is opening up finished work.

RCW 19.28.101(4), (5); RCW 19.28.010(3), (4) — note the local option belongs to **incorporated cities and towns**, not counties. See WA.3 and WA.4.

VERIFYING ANYONE YOU HIRE

Your permit office must verify a contractor's registration before issuing a permit for that contractor's work, but nobody verifies the people you pay directly. Do it yourself, in writing, before work starts — L&I publishes a public lookup at **secure.lni.wa.gov/verify/** that returns registration status, bond and insurance.

- **General trades** — a current **contractor registration** under chapter 18.27 RCW. Check that it is active, and check the bond and liability insurance while you are there.
- **Electrical** — a different credential entirely. An electrical **contractor** holds a license under chapter 19.28 RCW, and the individuals doing the work hold certificates of competency. Certified electricians are separately exempt from contractor registration when operating within the scope of their certification, so do not treat a missing 18.27 registration as proof of anything until you have checked the electrical license. (RCW 18.27.090(14))
- **Plumbing** — certification under chapter 18.106 RCW, with the same carve-out from contractor registration.
- **Septic** — installers and designers are regulated separately again; see WA.2 section D.

QUALIFICATION CHECKLIST — WORK THIS BEFORE YOU APPLY

Every line below is a condition a statute imposes or a fact your permit counter will ask you to stand behind. Work down it with a pen. If you cannot check a box, resolve it before you file — not after.

Step 1 — Ownership and purpose

	Item	Date	Notes / evidence
☐	Land is owned in your name as of the permit application date Recorded: _____ Parcel #: _____		
☐	You are not undertaking the work for the purpose of selling, demolishing, or leasing the property, and no purchase, listing, or lease agreement exists or is contemplated		
☐	If you have owned the property less than twelve months, you have considered RCW 18.27.090(11) and are not building to lease or sell		
☐	If any of that is uncertain, you have written advice before applying Date: _____ From: _____		

Step 2 — The trades you intend to do yourself

	Item	Date	Notes / evidence
☐	Electrical: you own the property, and the house is not being built for rent, sale, or lease		
☐	You have confirmed with L&I which property owner electrical permit applies to your job and what it costs Confirmed: _____ Permit type: _____		
☐	Plumbing: you own the property (no rent/sale/lease condition applies here) and you are not touching medical gas		
☐	Mechanical: local permit identified; EPA 608 certification held by whoever opens a refrigerant circuit		
☐	You understand that every one of these still needs its own permit and inspection		

Step 3 — Everyone you are paying

	Item	Date	Notes / evidence
☐	Each contractor's registration verified at secure.ini.wa.gov/verify/ Verified on: _____		
☐	Electrical contractor's chapter 19.28 license verified separately from contractor registration; bond and insurance checked, not assumed		
☐	You have received the written notice about unregistered contractors that RCW 18.27.110(2)(b) requires the permit office to give you		
☐	Nobody is being paid in a way that quietly makes you their employer — if you are unsure, get advice before the first payment		

WHAT TAKES THE EXEMPTION AWAY

- Performing the activities of a contractor on your own property **for the purpose of selling, demolishing, or leasing** it. (18.27.090(12))
- Acting as a contractor to lease or sell improved property you have owned for **less than twelve months**. (18.27.090(11))

- Not owning the property — unless it is your personal residence, which is the other half of subsection (12).
- For **electrical** only: building a new house intended for rent, sale, or lease without the L&I affidavit route, or working on property offered for sale within 12 months of acquiring it. (19.28.261(1)(a), (b))
- Falsifying information to obtain any of it — which forfeits the building permit outright. (18.27.110(3))

Sources — every Washington claim in this document (verified August 2026)

What this document states	Authority
Own-property and personal-residence exemption from contractor registration, and the selling/demolishing/leasing carve-out	RCW 18.27.090(12)
Owner contracting with a registered contractor; the twelve-month carve-out	RCW 18.27.090(11)
\$500 casual, minor or inconsequential threshold, and the anti-splitting rule	RCW 18.27.090(9)
Owner performing maintenance, repair and alteration on own properties	RCW 18.27.090(13)
Certified electricians and plumbers exempt from contractor registration within the scope of their certification	RCW 18.27.090(14)
Permit office must print the registration number and give written notice about unregistered contractors	RCW 18.27.110(2)
A permit obtained by falsifying an exemption is forfeited	RCW 18.27.110(3)
Homeowner electrical exemption; the rent/sale/lease and 12-month carve-outs; the 24-month affidavit route for buildings intended for rent, sale or lease	RCW 19.28.261(1)
Householder may give and receive help from friends, neighbors and relatives	RCW 19.28.261(6); 18.106.150(6)
No electrical work concealed before approval; no utility connection before approval	RCW 19.28.101(4), (5)
Incorporated cities and towns — not counties — may run their own electrical programs	RCW 19.28.010(3), (4)
Homeowner plumbing exemption, with no rent/sale/lease condition; medical gas excluded	RCW 18.106.150(1), (7)

Read any statute cited above at app.leg.wa.gov/RCW/default.aspx?cite=18.27.090, and any rule at app.leg.wa.gov/WAC/default.aspx?cite=296-46B-925, with the chapter and section swapped in. All RCW and WAC text in this kit was read there and verified August 2026.